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ITEM WISE EDITORIALS

39th WEEK



**MALDIVES ELECTIONS ...
A RAY OF HOPE FOR INDIA !**

UPSC CSE – GS II

GS II ... International Relations



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NEWSPAPER EDITORIALS ... DISCUSSION

27th SEPTEMBER, 2018

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Voters' choice

The Maldives turns the page on pre-election cynicism with a dramatic result

The interim results of Sunday's presidential election in the Maldives have given the joint opposition candidate, Ibrahim Mohamed Solih a resounding victory in the direct contest with the incumbent, Abdulla Yameen. The final results will be published by the election commission by September 30 and the current government will, according to procedure, hand over charge on November 17. But it is immediately clear that Maldivian voters have ushered in change, with 58% of the voters choosing Mr. Solih. Regardless of political affiliation, Maldivians have much to celebrate with the successful completion of the election. To begin with, the turnout of 89.2% has disproved pre-election cynicism about the integrity of the electoral process. Early on, the opposition had suffered a setback when former President Mohammed Nasheed, who was seen as the frontrunner, was disqualified from contesting because of a "terrorism conviction". Former President Maumoon Abdul Gayoom was behind bars on the charge of attempting a coup in February this year. Just ahead of the elections too, there had also been many misgivings over the conduct of the election commission, the courts and security forces, with these worries heightened when the headquarters of the main opposition party, the Maldivian Democratic Party, to which Mr. Solih belongs, were raided. Counting procedures were changed at the last minute, which led to some confusion during Sunday's polling, and many foreign journalists, including from India, were denied visas. Fortunately, the outcome has belied the worst fears about the election, and after meeting with Mr. Solih, President Yameen conceded defeat and vowed to ensure a smooth transition.

For New Delhi, the results are especially heartening as they present a chance to reset ties with Male, which have been on a downward spiral for several years. This was perceived to be a result of Mr. Yameen's close understanding with China, to which the Maldives is now heavily indebted. Mr. Yameen responded to India's criticism of the emergency he declared this year by clamping down on visas to Indian job holders, hundreds of whom await some movement in the matter after the new government takes over. India can also now renew talks over the fate of Indian Coast Guard and Air Force personnel stationed in the Maldives, whose visas have been pending since June. India was quick to welcome the provisional results and to congratulate, among others, the Maldivian Democratic Party, and the Jumhooree Party – to which the Vice-President-elect Faisal Naseem belongs. Going forward, New Delhi must stay clear of partisan positioning on the internal politics of the Maldives. The larger agenda must be to partner the Maldives in its stability and development rather than engaging in a tug of war with China.

A change in the Maldives

India must seize the moment and rebuild the bilateral relationship



HARSH V. PANT

Democracy is a strange leveller. In domestic politics it has a way of springing up surprises which few anticipate. Even in foreign relations, it can make crises disappear in the same manner in which it can create them. When most had assumed that a second term for Maldivian President Abdulla Yameen was a done deal, given the controlled nature of the Maldivian elections, the people of the small archipelago in the Indian Ocean voted for change and brought to power the Opposition candidate, Ibrahim Mohamed Solih. They came out in huge numbers with the turnout being 89.2% and dealt a decisive blow to Mr. Yameen.

Democratic vote

Belying concerns that he may not respect the outcome, after a few hours of election results, Mr. Yameen conceded defeat in a televised address by saying: "The Maldivian people have decided what

they want. I have accepted the results."

Mr. Solih is a senior politician in the Maldives and was the joint presidential candidate for an opposition alliance of the Maldivian Democratic Party (MDP), the Jumhooree Party and the Adhaalath Party. His victory underscores the commitment of the Maldivian politicians to secure the future of democracy in their country. The exiled former President of the Maldives, Mohammed Nasheed, who was ousted by Mr. Yameen in 2012, underlined this when he tweeted that Mr. Solih had done "an extremely good service" to the people. This was a do or die battle for democrats and they succeeded.

After the results came out, India's Ministry of External Affairs said Sunday's election marked "not only the triumph of democratic forces in the Maldives but also reflects the firm commitment to the values of democracy and the rule of law." Prime Minister Narendra Modi also called Mr. Solih, underscoring his support for better ties between the two countries. The U.S. State Department said the Maldivian people had "raised their democratic voices to determine the future of their country."

The Maldives has been in turmoil since its first democratically-



elect leader, Mr. Nasheed, was forced out of office following a police mutiny in 2012. This was followed by the controversial election of Mr. Yameen in 2013 when the Supreme Court annulled the result. Mr. Yameen was trailing Mr. Nasheed, thereby providing him an opportunity to win in the second round of voting. Mr. Yameen's presidency saw the Maldives flirting with Islamist radicalism and the democratic underpinnings of the nation came under assault. This February, he imposed a 45-day state of emergency fearing an attempt by his political opponents to impeach him. This led him to target his own half brother and former President, Maumoon Abdul Gayoom, and the judiciary. Even on the eve of the polling, the police was used to target the opposition MDP, amid con-

cerns that the campaign had been heavily tilted in favour of Mr. Yameen.

Mr. Yameen also fostered closer ties with China and Saudi Arabia, ignoring India and even pulling the Maldives out of the Commonwealth in 2016.

Tilt towards China

The alacrity with which Mr. Yameen embraced China caught India off guard. During his China visit last year, the two nations signed 12 pacts, including a free trade agreement (FTA). Mr. Yameen not only fully endorsed China's ambitious Maritime Silk Road initiative but also made the Maldives the second country in South Asia, after Pakistan, to enter into an FTA with China. The Yameen government pushed the FTA through the nation's Parliament, the Majlis, stealthily, with the opposition not attending the parliamentary session.

The opposition accused the Yameen government "of allowing a Chinese 'land grab' of Maldivian islands, key infrastructure, and even essential utilities, which "not only undermines the independence of the Maldives, but the security of the entire Indian Ocean region". The massive infrastructure growth funded by Chinese

debt was a key part of Mr. Yameen's election campaign but the massive debt trap made it a difficult proposition to be accepted.

Mr. Yameen may have conceded defeat but many of the challenges the Maldives faces linger. The opposition may have been united in its desire to oust Mr. Yameen but this unity will be tested in governance. Democratic institutions have been weakened and a fragile democracy can also be susceptible to radical ideologies if not effectively governed. And China is not going anywhere in a hurry. Its economic presence in the Maldives is a reality that all governments will have to contend with.

Mr. Yameen's ouster has certainly produced a favourable outcome for New Delhi and it should seize the moment to rebuild ties with Male. If there is one lesson out of the Maldives crisis, it is that political elites in India's neighbours will come and go but if India can stand together with the aspirations of citizens of neighbouring countries, then the prospects of a long-term sustainable relationship will be much brighter.

Harsh V. Pant is Distinguished Fellow at the Observer Research Foundation, New Delhi and Professor at King's College London

2 Voters' choice

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2 Opacity in the name of privacy

The draft Personal Data Protection Bill poses a danger to the hard-won right to information.

On August 24, 2017, the Supreme Court declared the right to privacy a fundamental right, a ruling widely welcomed. But many transparency advocates also felt apprehension, fearing that the right to privacy — meant to protect citizens from arbitrary state and corporate surveillance — might be deployed first and foremost to shield authorities from scrutiny by citizens.

Issue of accountability

The Personal Data Protection Bill, 2018, drafted by the Srikrishna Committee, confirms these concerns. The Bill identifies “personal data” as any data that directly or indirectly identifies a person. It then calls for amending clause 8.1.j of the Right to Information (RTI) Act, 2005. The clause currently exempts the following from disclosure: “information which relates to personal information, the disclosure of which has no relationship to any public activity or interest, or which would cause unwarranted invasion of the privacy of the individual unless the Public Information Officer... is satisfied that the larger public interest justifies the disclosure. Provided that the information which cannot be denied to the Parliament or a State Legislature shall not be denied to any person.”

The Srikrishna Committee suggests amending this clause to authorise public information officers, or PIOs, to deny information containing ‘personal data’, if they feel that such disclosure is likely to cause harm to ‘the data principal’, and if such harm outweighs public interest. The Bill defines ‘data principal’ as whoever the data relates to. This amendment may seem reasonable on first reading, but for the practical experiences of RTI users in the past years.

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2 Opacity in the name of privacy

The RTI Act's core aim is to bring accountability by making available public records that disclose the actions and decisions of specific, identifiable members of the political class and the bureaucracy. The Data Protection Bill extends the cloak of 'personal data' over all such information. It asks PIOs (now overwhelmingly appointed at junior levels) to weigh public interest against the potential for harm to those identifiable in public documents. The Bill defines harm expansively to include everything from blackmail and bodily injury to loss of reputation, humiliation and "mental injury". The Bill ignores that another key aim of the RTI Act is "containing corruption". By bringing corruption to light, dogged RTI users have served public interest and caused 'harm', in terms of the Bill, to those exposed.

A 'powerful proviso'

Further, most public records identify one or more persons. For instance, file notings identify bureaucrats making decisions by their posts, or even initials/names; public records, such as contracts awarded or clearances issued, identify specific private actors. Under the proposed amendment, PIOs will be forced to test public interest versus potential for harm to multiple "data principals" in just about every request that they handle, and this is a responsibility they will be reluctant to take on. When nine judges of the Supreme Court are unable to frame the bounds of privacy, can we expect PIOs to assess which information is private, and then weigh the potential harm to individuals due to disclosure, guided all the while by public interest and the cause of accountability?

The amended clause will chill the RTI Act, as PIOs will now have a strong legal ground to play safe, and toss out RTI requests deploying an amended clause 8.1.j. In fact, this is already happening on account of how the Supreme Court has perhaps inadvertently mangled the privacy safeguard provided in the existing Section 8.1.j.

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2 Opacity in the name of privacy

The RTI Act currently provides an acid test to help PIOs respond to requests: “Provided that the information which cannot be denied to the Parliament or a State Legislature shall not be denied to any person.” This is a powerful proviso, also retained in the proposed amendment. It implies that PIOs can deny only that information to applicants which they would deny to Parliament or State legislatures.

However, in *Girish Deshpande v. Central Information Commission & Ors.* (2012), a two-judge Bench of the Supreme Court ignored this proviso and prior precedents in order to rule that the assets and details about the performance of a public servant constituted personal information, and were exempt from disclosure. This has set a precedent for subsequent court rulings and for PIOs to indiscriminately expand the ambit of personal information, and reject RTI requests, using clause 8.1.j. Recently, the Union Department of Personnel and Training denied information about the mere number of IAS officers whose annual performance appraisal reports were pending, as of 2017. The PIO cited clause 8.1.j and the 2012 SC ruling as grounds for denial. In essence, the court has implicitly read down the powerful proviso above, prompting PIOs to “profusely abuse” the privacy exemption in the RTI Act, as Central Information Commissioner M. Sridhar Acharyulu has observed. According to Acharyulu, PIOs’ “misuse of 8.1.j is rampant”, and is reducing RTI to “a mockery.” The government should be addressing these alarms raised by the Central Information Commission, the RTI’s apex watchdog. The precedent created by Deshpande and its widespread abuse by PIOs need to be corrected, to reaffirm the fundamental right to information. Instead, the government is embarking on a project to legalise such ‘abuse’, by diluting transparency in the guise of an amendment furthering privacy. If the Bill is passed as is, and the RTI Act amended, it will deal a body blow to India’s hard-won right to information. The Ministry of Information Technology is accepting public feedback on the Data Privacy Bill until the end of September. Citizens should use this window to urge the government not to amend the RTI Act.

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UPSC CSE – GS II

GS II ... International Relations

India and its neighborhood- relations.

IMPORTANT QUESTION

ESSAY/ MAINS / GD / INTERVIEWS

Political elites may come and go, but the aspirations of the citizens of the neighbouring countries should stay with India. Discuss.





ABDULLA YAMEEN
INCUMBENT PRESIDENT



IBRAHIM MOHAMED SOLIH
THE PRESIDENT DESIGNATE

NEWS REPORT

- 1 Ibrahim Mohamed Solih, popularly known as Ibu, is going to become the President of tiny Indian Ocean archipelago, the Maldives.
- 2 He polled around 58%, he will only be the sixth President in the Country's five-decade electoral history.
- 3 Mr. Solih aged 56, became the Maldivian Democratic Party's presidential candidate after the other top figures were either jailed or exiled by the Abdulla Yameen Government.
- 4 A democratic activist, known for his reform efforts, maintained low-profile till now.

It is very clear that the Maldivian voters have ushered in for change, with 58% of the voters choosing Mr. Solih.



ABDULLA YAMEEN
INCUMBENT PRESIDENT



IBRAHIM MOHAMED SOLIH
THE PRESIDENT DESIGNATE

- Country located in the Indian Ocean
- Capital is Male
- Located towards South of India
- Consists of 1192 coral islands in a double Chain of 26 atolls
- Religion is Islam

- Known for luxury tourism
- Became independent in 1965
- Area is 298 sq.km
- Population .. 4,00,000 (approx.)
- Currency ... Maldivian Rufiyaa
- Unitary Presidential Constitutional Republic



INDIA - MALDIVES



PAST 50 YEARS IN PERSPECTIVE

- 1 Operation of Indian Army “*Operation Cactus*” foiled a coup by a group of Maldivians supported by pro-Eelam group in 1988
- 2 Maldives, several times in the past, supported *India’s bid for permanent membership of an expanded UN Security Council*
- 3 India maintains *naval presence in Maldives*, since 2009
- 4 After the devastating *tsunami on 26th Dec, 2004*, Indian Coast Guard’s Dornier aircraft was the first to land at Ibrahim Nasir Airport
- 5 In 2014, when *Maldives was into severe water crisis*, India sent water
- 6 Till 2012, Maldives maintained “*India First*” Policy

Overall, India & Maldives enjoyed good neighbourhood relations, but things went wrong during the past 6 years after the resignation of Mohamed Nasheed in 2012. Now tilt towards China is clearly evident.

WHAT HAPPENED SINCE 2012 IN MALDIVES?



- 1 Maldives was in turmoil since its first democratically-elected leader, Mr. Nasheed, was forced out of office, following police mutiny in 2012.
- 2 This was followed by the controversial election of Mr. Abdulla Yameen in 2013.
- 3 It saw the Maldives flirting with Islamist radicalism and the democratic underpinnings were under assault.
- 4 In February this year, it imposed a 45-day state of emergency, fearing an attempt by the political opponents to impeach him.
- 5 He targeted his own half-brother and former President, Maumoon Abdul Gayoom, and the Judiciary.



TIES WITH INDIA ON DOWNWARD SPIRAL SINCE 2012

- 1 The ties have been on the downward spiral for the past few years.
- 2 This is because of Mr. Yameen's understanding with China, which made huge investments.
- 3 He recently clamped down on visas to Indian job holders, this is after India's criticism of the emergency .
- 4 There are also issues pertaining to Indian Coast Guard and Air Force personnel stationed in the Maldives, whose visas have been pending since June.



Maldives is now heavily indebted.



Lead



MR. ABDULLA YAMEEN AND CLOSER TIES WITH CHINA

- 1 He fostered closer ties with China and Saudi Arabia.
- 2 He altogether ignored India and pulled the Maldives out of the Commonwealth in 2016.
- 3 During his visit to China last year, the two Nations signed 12 pacts, including Free Trade Agreement.
- 4 He fully endorsed China's ambitious Maritime Silk Road Initiative.
- 5 He also made the Maldives, the second country in South Asia, after Pakistan, to enter into an FTA with China.

- 6 The Yameen Government pushed the FTA through the Nation's Parliament, the Majlis, with the Opposition not attending the parliamentary session.
- 7 The Opposition accused the Yameen Government of allowing a Chinese 'land grab' of Maldivian islands, key infrastructure and even essential utilities.
- 8 The Opposition says, it not only undermined the independence of the Maldives, but also the security of the entire Indian Ocean region as a whole.

The massive infrastructure growth funded by Chinese debt was key part of his campaign, but the massive debt trap made it a difficult proposition to be accepted.

WHY THIS ELECTION IS SIGNIFICANT?

- 1** The turnout is 89% and it disproved pre-election cynicism about the integrity of the electoral process.
- 2** Former President Mohammed Nasheed was disqualified from contesting, because of “terrorism conviction”.
- 3** Former President Maumoon Abdul Gayoom was behind bars on the charge of attempting a coup.
- 4** There were several misgivings over the conduct of the Election Commission, the courts and security forces.
- 5** The headquarters of the main opposition party, the Maldivian Democratic Party, was raided.
- 6** Counting procedures were changed at the last minute, this led to some confusion during the polling process.
- 7** Several foreign journalists, including many from India, were denied visas.



The outcome belied the worst fears about the election and the President conceded defeat.

WHAT ARE THE CHALLENGES, THE MALDIVIAN GOVERNMENT MAY FACE?



- 1 The Opposition may have been united in ousting Mr. Yameen, but it is to be shown in governance as well.
- 2 Democratic institutions have been weakened.
- 3 Fragile democracy can also be susceptible to radical ideologies, if not effectively governed.
- 4 Chinese economic presence in Maldives is a reality and the future Governments will have to contend with this fact.

HOW TO VIEW THIS DEVELOPMENT AS FAR AS INDIA IS CONCERNED?



- 1 It certainly produced a favourable outcome for India.
- 2 It should seize the moment to rebuild ties with Male.
- 3 One lesson to be learnt from Maldives crisis is, political elites may come and go, but the aspirations of citizens of neighbouring countries can stand with India.
- 4 The prospects of long-term sustainable relationship will be brighter.

WHAT IS THE NEED OF THE HOUR?



- 1 India was quick to welcome the provisional results and congratulated, among others, the Maldivian Democratic Party and the Jumhooree Party.
- 2 One important aspect is New Delhi must stay clear of partisan positioning on the internal politics of Maldives.
- 3 The larger agenda must be to partner the Maldives in its stability and development, rather than engaging in a tug of war with China.

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